

26STCV00634 26STCV00634

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-13

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Case Number: 26STCV00634 Hearing Date: August 13, 2026 Dept: 732

Luckett Palmer Jr. v. Carrie Palmer

Thursday, August 13, 2026

CASE NUMBER: 26STCV00634

OPPOSED

Motion for Order

Permitting Buyout of Plaintiff's Net Equitable Interest Following Full Accounting.

Facts:

This is an action for partition. The Complaint alleges as follows. Plaintiff Luckett Palmer Jr. ("Plaintiff") and Defendant Carrie Palmer ("Defendant") are joint tenants with 50% interests in property on Hobart Boulevard in Los Angeles ("Subject Property"). (Complaint ¶¶ 1–3.) Plaintiff seeks partition by sale of the property. (Complaint ¶ 122.)

Procedural

History: Plaintiff filed the Complaint on January 8, 2026, alleging one cause of action for partition.

On

April 29, 2026, Defendant filed the instant motion for order permitting buyout of Plaintiff's net equitable interest.

On

May 19, 2026, Plaintiff filed an opposition.

On

May 28, 2026, Defendant filed a reply.

Analysis:

1.

Buyout of Plaintiff's Net Equitable Interest

Defendant moves, pursuant to the Court's equitable authority, the Court for an order permitting Defendant to purchase Plaintiff's net equitable interest in the Subject Property after a full and complete equitable accounting. (Motion at pp. 1-2.)

Defendant further requests the Court stay any partition sale proceedings, defer appointment of a referee, and allow Defendant a reasonable period of time within which to complete the buyout. (Motion at p. 2.)

Defendant argues a buyout is a more efficient and equitable resolution than a forced sale. (Motion at p. 4.) Defendant further argues she has demonstrated financial ability, responsibility, and good faith to complete a buyout. (Motion at pp. 6-7.) Defendant argues Plaintiff did not proportionately contribute to the efforts to repair the Subject Property and that Plaintiff has received significant financial benefits from the Subject Property. (Motion at p. 7.) Finally, Defendant argues the Court should stay the sale of the Subject Property given Defendant's readiness to proceed with the buyout. (Motion at p. 10.)

In opposition, Plaintiff argues Defendant improperly seeks an order permitting a buyout of Plaintiff's alleged "net equitable interest" before any actual adjudication of the parties' competing claims. (Opposition at p. 3.) Plaintiff contends Defendant's motion fails because the statutory buyout procedures apply only to tenancies in common, whereas here the parties hold title as joint tenants. (Opposition at pp. 4-5.) Plaintiff argues Defendant

improperly seeks premature adjudication of disputed accounting claims, namely what Plaintiff's net equitable interest may be. (Opposition at p. 6.) Finally, Plaintiff argues Defendant's request to stay partition proceedings must be denied because Defendant has not demonstrated an enforceable or adequately supported arrangement sufficient to justify staying the partition process. (Opposition at p. 8.)

In reply, Defendant argues the relief sought is equitable in nature, and that Defendant seeks to preserve the Subject Property and permit the Court to consider an equitable mechanism through which Defendant may acquire Plaintiff's interest prior to any premature partition sale. (Reply at p. 3.) Defendant contends Defendant does not seek immediate or final adjudication of every accounting issue, but rather to preserve the Court's ability to fairly evaluate the issues. (Reply at p. 3.) Defendant argues she has presented good-faith evidence supporting the feasibility of an equitable buyout. (Reply at p. 5.) Finally, Defendant contends forced sale prior to accounting and valuation may result in substantial prejudice and economic waste. (Reply at p. 7.)

First, the Court is not persuaded that Defendant's motion is not one for a statutory buyout under Code of Civil Procedure section 874.317. Defendant contends in reply that Plaintiff "improperly elevates terminology over substance" and that the relief sought is "equitable in nature." (See Reply at p. 3.) However, Defendant's motion refers to a motion for "statutory buyout" throughout. (See Motion at p. 11, 14, 15, and Ex. D.) Defendant cannot re-characterize Defendant's motion on reply.

Further, Defendant is not entitled to a statutory buyout. Code of Civil Procedure section 874.317 applies to tenancies in common, not joint tenancies like that at issue here. (See Code Civ. Proc., § 874.311, subd. (b) ["This act applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property."].)

Second, adjudicating Defendant's claims now would be premature. Plaintiff disputes the contribution amounts, the characterization of improvements as reimbursable, and the alleged rental, refinance, and tax offsets. (See Opposition at p. 2.) A party seeking equitable credits must substantiate expenditures with competent evidence. (See *Hunter v. Schultz* (1966) 240

Cal.App.2d 24, 33-34.) Defendant's

self-prepared summaries and estimates do not carry that burden, and Defendant has made no showing these issues may be summarily resolved.

Finally, Defendant has not shown grounds to stay the partition sale. A co-owner has an absolute right to partition unless barred by a valid waiver. (Code Civ. Proc., § 872.10, subd. (b); LEG Invs. v. Boxler (2010) 183 Cal.App.4th 484, 493.) Staying the sale would frustrate Plaintiff's partition right. Further, Defendant does not establish her ability to fund an acquisition. Defendant references investor support and lender communications but has not presented evidence of a binding financing commitment or proof of sufficient funds.

Based on the foregoing, Defendant's motion is DENIED without prejudice.

Superior Court of California

County of Los Angeles

Department 61

LUCKETT PALMER JR.,

Plaintiff,

v.

CARRIE PALMER

Defendant.

Case No.:

26STCV00634

Hearing Date: August 13, 2026

[TENTATIVE] RULING RE:

DEFENDANT'S

MOTION FOR ORDER PERMITTING BUYOUT OF PLAINTIFF'S NET EQUITABLE INTEREST
FOLLOWING FULL ACCOUNTING; REQUEST TO STAY PARTITION SALE

Defendant Carrie Palmer's motion for order permitting buyout
of Plaintiff's net equitable interest following a full accounting and request
to stay partition sale is DENIED without prejudice.

Defendant to provide Notice.

Dated: August 13,
2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court